

**Superior Court of the State of California
County of Orange**

**Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine**

Hearing Date and Time: September 17, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Civil Court Reporter Pooling](#). For additional information regarding court reporter availability, please visit the court's website at [Court Reporter Interpreter Services](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case.

The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

<https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

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#	Case Name Case Number	Tentative
1.	<i>In re Intelifund, LLC</i> 2026-01572926	OFF CALENDAR based on request for dismissal filed on August 20, 2026.
2.	<i>In re: Martinez</i> 2025-01511372	Before the court is the continued hearing on the order to show cause as to why the court should not reconsider its February 26, 2026 ruling granting the first amended verified petition for approval for transfer of structured settlement payment rights by and between payee and real party in interest Luis Martinez (Payee) and petitioner CBC Settlement Fundings, LLC (Petitioner). The court originally heard the order to show cause on August 6, 2026. The court posted a tentative noting the response Petitioner submitted to the order to show cause raised additional concerns and failed to address all the concerns the court previously raised. At the August 6, 2026 hearing, the court granted the request of Petitioner's counsel to continue the order to show cause hearing for Petitioner to once and for all address all concerns and deficiencies. Unfortunately, it appears Petitioner still has not addressed everything. Notice of today's hearing was not provided to anyone—not Payee, not the annuity owner, and not the annuity issuer. Insurance Code section 10139.5, subdivision (f)(2),

		requires all interested parties to receive at least 20 days' notice of the hearing on the petition. Obviously, that did not occur prior to the hearing at which the amended petition was originally approved because Petitioner served the wrong annuity owner and annuity issuer. The court was willing to allow Petitioner to correct that error by allowing Petitioner to provide the proper annuity owner and issuer at least 20 days' notice of the order to show cause hearing. Petitioner, however, gave less than the required notice, which is one of the reasons the order to show cause hearing was continued. Now, Petitioner has not provided any notice of this continued hearing. Another issue the court raised was Petitioner's failure to serve Payee with any of the documents following the order to show cause the court issued on June 24, 2026. Petitioner did not give Payee notice of the August 6, 2026 hearing and Petitioner did not serve a copy of its July 23, 2026 filing on Payee. Petitioner did serve a copy of its most recent filing—filed on September 11, 2026—on Payee, but it still has not served Payee with a copy of the court's order to show cause or the first supplemental filing. As such, Payee has no context for the most recent filing and has not been fully advised of the issues. As for Petitioner's September 11, 2026 filing, it purports to be a declaration by Michael B. Dalbey. That declaration, however, fails to comply with Code of Civil Procedure section 2015.5. Mr. Dalbey signed the declaration in Conshohocken, Pennsylvania but the declaration does not say that it was signed "under the laws of the State of California." Section 2015.5 requires a certification or declaration to be in the following form: "(a) If executed within this state: 'I certify (or declare) under penalty of perjury that the foregoing is true and correct'; [¶] (b) If executed at any place, within or without this state: 'I certify (or declare) under penalty of perjury under the laws of the State of California that the foregoing is true and correct.'" A declaration executed outside of California that fails to include the words "under the laws of the State of California" is inadmissible hearsay and has not evidentiary value. (<i>Kulshrestha v. First Union Commercial Corp.</i> (2004) 33 Cal.4th 601, 612 fn. 6; <i>ViaView, Inc. v. Retzlaff</i> (2016) 1 Cal.App.5th 198, 217.) Moreover, Mr. Dalbey's declaration raises issues regarding payments made to Payee. According to Mr. Dalby, Petitioner will pay the \$5,000 to Payee over seven separate installments, six of which have been paid. This payment schedule is not referenced in the "Purchase and Sale
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		Agreement.” (Exh. A to ROA 13.) In fact, the declaration signed by Payee on December 6, 2025, stated he needed the \$5,000 to “bring my rent current” and “avoid losing my home.” (Martinez Decl, ¶11, Exh. F to ROA 13.) He did not say he needed to receive a stream of seven payments. Moreover, the court is unable to find any reference to such a payment schedule rather than a lump sum payment. Although not clearly stated, the implication was a single lump sum payment. At this point in time, the court is inclined to vacate the prior ruling and deny the amended petition without prejudice to Petitioner filing a new, amended petition that fully complies with the governing statutory requirements, accurately describes the transaction, and provides valuations based on current information.
3.	<i>Singer vs. D'Amico</i> 05CC09237	Before the court is the order to show cause why an order for sale of dwelling should not issue relating to property located at 32961 Calle Miguel, San Juan Capistrano, California 92675 and owned by judgment debtor Nina D'Amico (Debtor) and her spouse, Terry K. D'Amico, as husband and wife and joint tenants. The order to show cause was entered on July 27, 2026, based on the application of judgment creditor Katherine Singer (Creditor). The court previously found Creditor's application satisfied the statutory requirements, and therefore the court issued the order to show cause. (Code Civ. Proc., §§ 704.750, 704.760, 704.770.) In connection with the order to show cause the court must determine whether the dwelling is a homestead entitled to the homestead exemption, the amount of any homestead exemption, the dwelling's fair market value, the existence of any liens senior to Creditor's judgment lien, the amount of any such liens, and whether the sale of the dwelling is likely to produce a bid high enough to satisfy any part of Creditor's judgment. (<i>Meyer v. Sheh</i> (2022) 74 Cal.App.5th 830, 838-839.) There is no statutory requirement the bid be sufficient to cover any costs of the sale. (See <i>In re Hyman</i> (9th Cir. 1992) 967 F.2d 1316, 1321.) The court finds the issuance of the order to be warranted. Creditor concedes Debtor is entitled to a homestead exemption on the property, and the amount of that exemption is \$150,000 based on the exemption statute in effect at the time Creditor's original lien was created in 2006. (ROA 79, Ex. F; Code of Civ. Proc. § 703.050, subd. (a); § 704.730, subd. (a)(3) [effective January 1,

		2004, to December 31, 2009]; <i>Berhanu v. Metzger</i> (1992) 12 Cal.App.4th 445, 447.) The court finds the fair market value of the property to be \$1,274,000 based on the appraisal by Emanuel Rubin. (ROA 77, Ex. G.) There exists a first lien on the property held by NewRez LLC dba Shellpoint Mortgage Servicing, with a current payoff amount of \$239,595.74. (ROA 96, Ex. O.) The court finds, by a preponderance of the evidence, there is sufficient equity in the home to cover all liens and encumbrances which are senior to Creditor's abstract of judgment plus the conceded value of the homestead exemption. (Code Civ. Proc., § 704.780. subd. (b).) Creditor is ordered to submit a proposed order for sale of dwelling consistent with this ruling that includes all statutorily required information, including but not limited to, the amount of the proceeds of the sale that is to be distributed to each person having a lien or encumbrance on the dwelling and the name and address of each such person. (Code of Civ. Proc., § 704.780, subd. (b).) Creditor's counsel is ordered to give notice of this ruling.
4.	VFS, LLC vs. AM Bakersfield, LLC 2025-01487067	Before the court is the continued hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 3111 Gardenia Lane, Yorba Linda, California 92886 and owned by judgment debtor Arpit Patel (Debtor) and his spouse, Yesha Patel, as husband and wife and joint tenants. The order to show cause was entered on June 4, 2026, based on the application of judgment creditors VFS, LLC and VFSOX, LLC (collectively, Creditors). The court previously found Creditor's application satisfied the statutory requirements, and therefore the court issued the order to show cause. (Code Civ. Proc., §§ 704.750, 704.760, 704.770.) At the prior hearing on August 6, 2026, the court noted it was now up to the court to determine whether Debtor is entitled to a homestead exemption for the property, if so, the amount of that exemption, the property's fair market value, the amount of the outstanding liens, and whether Debtor has sufficient equity in the property. The court further noted the parties did not dispute Debtor and his spouse lived in the home and were entitled to the homestead exemption in the amount of \$722,150. The court further determined that the outstanding balance of the first lien on the property held by Change Lending, LLC is \$3,064,745.43.

	The remaining disputed issues include the current fair market value of the property, and the existence and amount of the second lien. The court also lacked other pertinent information including the status of foreclosure and whether any outstanding real property tax liens existed on the property. The court continued the hearing to today's date for the parties to provide further information regarding these issues. Creditors submitted an updated independent appraisal report for the dwelling based on comparable sales and property characteristics. The appraisal is dated August 19, 2026, and values the dwelling at \$3,950,000. Debtor also submitted an independent appraisal report dated August 19, 2026, also based on comparable sales and property characteristics, but values the dwelling at \$3,880,000. It appears the appraisers used different comparable homes in determining the market value. The court determines the property's fair market value is between \$3,880,000 and \$3,950,000, and the court need not decide between these two valuations to determine whether to issue an order for sale. The second lien or deed of trust is held by Jiten Gandhi, as trustee of the Gandhi Family Trust (Gandhi). Gandhi has shown the original promissory note dated December 28, 2021, was for the principal amount of \$300,000, secured by a second deed of trust dated June 14, 2022. The promissory note was subsequently amended on August 10, 2023, to add \$200,000 to the principal. The second deed of trust dated June 14, 2022, was recorded on July 25, 2024 – prior to recordation of Creditors' abstract of judgment on July 10, 2025. Gandhi contends the outstanding balance of the note is \$392,530.74. Though the interest calculations appear low and not made in accordance with the terms of the amended note, the court determines the amount of the second lien to be no less than \$392,530.74. Based on the evidence submitted, the court finds there will be insufficient equity in the property to satisfy any part of Creditors' judgment. Even using the highest value offered by Creditor in the amount of \$3,950,000, when the first deed of trust of \$3,064,745.43 (which may be even higher by this point), the homeowner's exemption of \$722,151, and the amount of the second deed of trust of \$392,530.74, there is no equity to pay any portion of the judgment. Indeed, the equity is negative \$229,427.17. Even if the court uses the principal amount only of the second deed of trust there is still negative equity in the
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		property and that negative equity would only grow if the court were to use the appraisal offered by Debtor. The court acknowledges Creditor raises a number of questions regarding the validity of the second deed of trust. Nonetheless, as the court pointed out in its August 6, 2026 ruling, the court "lacks the authority to evaluate the validity of any recorded lien in connection with these proceedings. Even an apparently fraudulent lien must be provided for in the order of sale if it is superior to the judgment creditor's lien. The creditor's recourse is to file a fraudulent conveyance action for a determination the lien in void." (See Ahart, Cal. Prac. Guide: Enf. Judgment & Debts (The Rutter Group 2026) ¶9:1156, citing <i>Kahn v. Berman</i> (1988) 198 Cal.App.3d 1499, 1509, fn. 11.) The court also must keep in mind the ongoing nonjudicial foreclosure proceedings that have been initiated by the holder of the first deed of trust. Based on the foregoing, the court concludes there is insufficient equity in the property and therefore declines to issue an order for sale of the dwelling. Before finalizing the court's ruling, the court notes neither Debtor nor Indra M. Gandhi (counsel for holder of the second deed of trust, Jiten Gandhi, and Sanjay Shah) filed any proof of service showing the declarations and other documents they filed after the August 6, 2026 hearing were served on Creditor. As such, the court will need to confirm service of those documents. <u><i>Evidentiary Objections:</i></u> Creditors filed evidentiary objections to the declarations of Jiten Gandhi and Sanjay Shah filed on behalf of Debtor. As to the objections to the Gandhi declaration, objection numbers 1-3, 6-9, 13, and 15 are OVERRULED and objection numbers 4, 5, 10-12, and 14 are SUSTAINED. As to the objections to the Sanjay declaration, objection numbers 1-6 are OVERRULED. Creditors' counsel is ordered to give notice of this ruling.
5.	<i>E Mortgage Capital, Inc. vs. Perez</i> 2021-01213474	Before the court is the motion by attorney Patricia Rodriguez to be relieved as counsel of record for defendant Anthony Perez. As more fully set forth below, the motion is DENIED WITHOUT PREJUDICE. Initially, the court notes, on January 23, 2023, the plaintiffs filed a request for dismissal of all parties and all causes of action without prejudice. (ROA 167.) The court's file does not show any subsequent activity in the case other than the instant motion to be relieved. It therefore unclear what

	attorney Rodriguez is referring to when she states in her declaration she has "encountered a conflict of interest" with Mr. Perez, given the case appears to have been inactive for years. There also is a question whether the court has any continuing jurisdiction in this matter in light of the dismissal and the lack of any pending proceedings. Notwithstanding the foregoing, there is insufficient proof Mr. Perez has been served with notice of this hearing and related documents. This motion was filed on April 28, 2026, and originally noticed for a hearing on August 13, 2026, in Department C13. On July 15, 2026, the court issued a Minute Order re-setting the hearing as follows: "On the court's own motion, the Motion to Be Relieved as Counsel of Record (ROA #180) is continued to 09/17/2026 at 02:00 PM in Department C23 to be heard by the Supervising Judge. "Clerk to give notice. <u>Moving counsel to give notice to their client.</u>" (Emphasis added.) There is no proof of service on file showing the client was given notice as required by the Court's Minute Order. California Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days prior to the hearing. Moreover, attorney Rodriguez' statement regarding service in her declaration at ROA 176 is lacking. In counsel's declaration in support of the motion, she states at paragraph 3(b) that she confirmed the client's address by "Review of client file and most recent court docket entries reflecting client's last known address, with no indication of a change of address and no returned mail." There is no indication as to what documents were reviewed in the client file upon which counsel relied. For example, the last correspondence may have been 3 ½ years ago and without knowing when the last correspondence was sent, the manner in which it was sent and whether the correspondence was sent with tracking, one can't determine if counsel's statement that there has been "no returned mail" is of any relevance. Accordingly, because there is no proof of service of the date and time of the hearing and the efforts made to confirm the client's address are insufficient, the motion is DENIED WITHOUT PREJUDICE.
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		Attorney Rodriguez is ordered to give notice of this ruling.
6.	<i>Contreras vs. Ace Restoration & Construction, Inc.</i> 2022-01247671	Before the court is the continued hearing on the unopposed motion of plaintiff Carla Contreras (Plaintiff) to enforce settlement agreement pursuant to Code of Civil Procedure section 664.6. This motion originally came on for hearing on August 20, 2026, prior to which the court posted a tentative ruling to grant the motion, in part. Although defendants Ace Restoration & Construction, Inc., Cheree Nichelle Ray, and Shelby Lynn Cordova (collectively, Defendants) did not file any opposition, defendants Ray and Cordova appeared at the hearing. They asserted, although they had missed some payments, they intended to perform and Plaintiff had not properly credited them for all payments. Based on their request, the court continued the hearing to today's date to provide Defendants an opportunity to oppose the motion and present evidence to support their claims. As stated in the Minute Order from that hearing (ROA234), the court ordered Defendants to file any written opposition to the motion not later than September 1, 2026. The court also explained defendants Ray and Cordova could represent themselves by defendant Ace Restoration & Construction, Inc. could only appear through counsel. Despite giving Defendants this opportunity, they failed to file any opposition or declarations. In the instant motion, Plaintiff seeks an order enforcing the settlement agreement entered into between Plaintiff and Defendants by entering judgment against Defendants and compelling them to execute valid and properly notarized documents including the required Deed of Trust, appointing an elisor to execute such documents if Defendants fail to comply, and awarding attorney fees and costs against Defendants. As more fully set forth below, the motion is GRANTED. During 2024 when the parties' entered into the settlement agreement and Plaintiff dismissed this action, Code of Civil Procedure section 664.6, subdivision (a), stated, "If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement."

		Here, Plaintiff has shown the parties entered into the settlement agreement and agreed it would be enforceable pursuant to section 664.6. Moreover, the parties stipulated and the court agreed to retain jurisdiction to enforce the agreement. Plaintiff also has shown Defendants breached the settlement agreement. Defendants have not filed any opposition to this motion. The court therefore finds Plaintiff satisfied the requirements of section 664.6 and Defendants breached the agreement warranting this motion to enforce the settlement. Based on the foregoing, the motion is GRANTED and the court will enter judgment against Defendants based on the parties' settlement agreement. Plaintiff's counsel is ordered to submit a proposed judgment for the court's signature. Notwithstanding the foregoing, Plaintiff's request for an award of attorney fees and costs is DENIED WITHOUT PREJUDICE. Although the parties' settlement agreement authorizes an award of attorney fees for enforcing its terms, the motion does not request any specific amount of attorney fees or costs nor does it provide any evidence to support an award in any particular amount, such as a declaration describing the work performed and hourly rates or billing statements. Plaintiff's counsel is ordered to give notice of this ruling.
7.	<i>Feng vs. Chen</i> <i>2026-01593722</i>	Before the Court is the petition by petitioner Jing Feng (Petitioner) for release of mechanic's lien. As more fully set forth below, the petition is DENIED WITHOUT PREJUDICE. Civil Code section 8486, subdivision (b), states, "The petitioner shall serve a copy of the petition and a notice of hearing on the claimant at least 15 days before the hearing. Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108." Cal. Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days before the hearing. Here, there is proof of service on file for either the petition or notice of hearing. Moreover, the petition is deficient as it fails to include the information required by Civil Code section 8484, which states as follows:

		"A petition for a release order shall be verified and shall allege all of the following: "(a) The date of recordation of the claim of lien. A certified copy of the claim of lien shall be attached to the petition. "(b) The county in which the claim of lien is recorded. "(c) The book and page or series number of the place in the official records where the claim of lien is recorded. "(d) The legal description of the property subject to the claim of lien. "(e) Whether an extension of credit has been granted under Section 8460, if so to what date, and that the time for commencement of an action to enforce the lien has expired. "(f) That the owner has given the claimant notice under Section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found. "(g) Whether an action to enforce the lien is pending. "(h) Whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien." Petitioner also fails to cite any statutory or case law authority to support the petition or any of the assertions made therein. Finally, it appears the petition may be moot as respondent Gui Xing Chen filed a declaration stating he recorded a release of the lien at issue. A copy of that release is attached to his declaration. Based on the foregoing, the petition is DENIED WITHOUT PREJUDICE. Petitioner is ordered to give notice of this ruling.
8.	<i>Squires Lumber Company vs. McGee Contracting Inc.</i> 2023-01300636	Before the court is the motion of plaintiff and judgment creditor Squires Lumber Company (Creditor) for order of assignment of payments, for order restraining judgment debtor from assigning or otherwise disposing of the right to payment, and for order compelling accountings. As more fully set forth below the motion is DENIED WITHOUT PREJUDICE.

		By this motion, Creditor seeks an order (1) directing payments by Jephtha Trucks LLC or out of Jephtha Trucks LLC's account to defendant and judgment debtor Jason McGee (Debtor) be assigned to Creditor, (2) requiring Debtor to turnover to Creditor any payments made by Jephtha Trucks LLC or out of Jephtha Trucks LLC's accounts to Debtor, (3) restraining Debtor and anyone acting on his behalf from encumbering, assigning, disposing or spending any portion of Debtor's payments from Jephtha Trucks LLC or out of Jephtha Truck LLC's accounts, and (4) compelling Debtor to provide, file, and serve a monthly accounting. An assignment order is a court order assigning to the judgment creditor the judgment debtor's right to payments due from a third person. Assignment orders are authorized by Code of Civil Procedure section 708.510 et seq. The statutory provisions regarding assignment orders are subject to strict construction. (<i>Landstar Global Logistics, Inc. v. Robinson & Robinson, Inc.</i> (2013) 216 Cal.App.4th 378, 390.) Specifically, Code of Civil Procedure section 708.510, subdivision (a), provides, "the court may order the judgment debtor to assign to the judgment creditor . . . all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments, including but not limited to the following types of payments: [¶] (1) Wages due from the federal government that are not subject to withholding under an earnings withholding order. [¶] (2) Rents. [¶] (3) Commissions. [¶] (4) Royalties. [¶] (5) Payments due from a patent or copyright. [¶] (6) Insurance policy loan value." Here, Creditor has not established any right to payment that can be assigned. Creditor has shown a significant volume of random payments or transfers from Jephtha Truck LLC's bank account to Debtor that total a considerable sum. Creditor speculates Debtor, as the only member of Jephtha Truck LLC, is making these transfers as distributions from the LLC or compensation for services render (as opposed to wages that could be garnished). That, however, does not establish the existence of a right to payment that may be subject to an assignment order. Creditor appears to be seeking a charging order against Debtor's interest in Jephtha Trucks, LLC. Code of Civil Procedure section 708.310 et seq. authorizes a charging order that requires a judgment debtor's interest in an LLC to be applied toward satisfaction of a judgment. Indeed, a
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		lien on a judgment debtor's interest in an LLC is created by service of a notice of motion for charging order on the judgment debtor and on all members or the LLC. (Code Civ. Proc., § 708.320.) There are a number of supplemental orders that can be made with a charging order, including appointment of a receiver. The court, however, has not been convinced an enforceable assignment order can be made in this case on the showing that has been made. Accordingly, the motion is DENIED WITHOUT PREJUDICE to a new motion making a sufficient showing or a different motion seeking a different form of order to aid in enforcing the judgment. Creditor's counsel is ordered to give notice of this ruling.
9.	<i>Hoang vs. Villageway Management, Inc.</i> <i>2021-01218583-</i>	Before the court are two motions filed by plaintiff Nam Neil Hoang (Plaintiff): (1) the motion to strike or tax costs requested by defendants Villageway Management, Inc., Country Community Association, Michelle Morand, Jim Pijloo, and Shayaan Vasi (collectively, Defendants) for trial court proceedings, and (2) the motion to strike or tax costs requested by Defendants for appellate court proceedings. As more fully set forth below, the motion regarding the trial court costs is DENIED, and the motion regarding the appellate court costs is GRANTED. <u>Motion No. 1: Trial Court Costs</u> Defendants filed a memorandum of costs after entry of judgment in the superior court matter requesting \$22,575.94 in costs. (ROA 460, 462.) As judgment was entered on May 3, 2024, and the memorandum of costs was filed on May 17, 2024, it is timely. Plaintiff had until 15 days after service of the memorandum to file a motion to strike or tax the costs. (Cal. Rules Ct. rule 3.1700(a).) Instead of filing the motion in a timely manner, Plaintiff waited 21 months beyond the filing deadline to file the motion. (ROA 514.) As the motion is untimely, it must be DENIED. (<i>Douglas v. Willis</i> (1994) 27 Cal.App.4th 287, 289 ["The 'failure to file a motion to tax constitutes a waiver of the right to object'"].) In addition and in response to Plaintiff's argument, the court notes the filing of a notice of appeal does not deprive the trial court of jurisdiction to award costs to the prevailing party. Costs are a collateral matter not impacted by any stay that may arise from an appeal from the judgment. (<i>Bankes v. Lucas</i> (1992) 9 Cal.App.4th 365, 368-69.) A judgment on the appeal also has been entered affirming the ruling on the summary judgment motion, and jurisdiction

		had been returned to this court. Plaintiff's fee and costs waivers in the superior court action do not apply to costs awarded to the prevailing party and Government Code section 68637 does not require a hearing in the present matter as this is not a family law matter. (Gov. Code § 68637, subds. (d) & (e).) Finally, all the costs in the memorandum are recoverable under Code of Civil Procedure section 1033.5 and Defendants have produced billing receipts showing the costs were incurred; Plaintiff provided no valid arguments the costs were not permissible. Based on the foregoing, the motion to strike or tax the costs in the superior court action is DENIED. Defendants are hereby awarded \$22,575.94 in costs against Plaintiff on the superior court action. <u>Motion No. 2: Appellate Costs</u> In its ruling on Plaintiff's appeal, the Court of Appeal stated Defendants were the prevailing party and were entitled to recover their costs on appeal. (ROA 478.) To recover costs on appeal, the memorandum of costs must be filed and served within 40 days of issuance of the remittitur. (Cal. Rules Ct., rule 8.278(c)(1).) The remittitur was issued on January 15, 2026. (ROA 478.) The memorandum requesting \$3,784.10 in costs incurred on the appeal was not filed until February 26, 2026—i.e., 42 days later. (ROA 511.) This 40-day period is not extended based on the means of service because it runs from the remittitur's issuance, not its service. (<i>Wash v. Banda-Wash</i> (2025) 108 Cal.App.5th 561, 570.) A party awarded costs who fails to file and serve the costs memorandum within the prescribed time period waives the costs recovery. (<i>Moulin Electric Corp. v. Roach</i> (1981) 120 Cal.App.3d 1067, 1070.) Defendants' memorandum of costs on appeal therefore is untimely and they have waived such costs. Based on the foregoing, the motion to tax or strike costs on appeal is GRANTED, and Defendants shall not recover any costs on appeal. Defendants' counsel is ordered to give notice of these rulings.
10.	<i>Saddozai vs. American Contractors Indemnity Company</i>	Before the court are the following two motions: (1) the motion for order awarding attorney fees as an item of post-judgment costs filed on July 6, 2026, by plaintiff and judgment creditor Legal Service Bureau Inc., dba Global Fugitive Recovery (LBS), and (2) the motion to strike or tax costs filed on July 16, 2026, by defendants and judgment

2015-00816859	debtors Orange County Bail Bonds, Inc. (OCBB) and Robert Miller (Miller). <u>Motion No. 1: Motion for Attorney Fees as Post-Judgement Costs</u> By this motion LBS seeks to recover from Miller certain attorney fees it incurred as an item of post-judgment costs. LBS is clear it seeks to recover the fees from Miller only in light of OCBB's discharge in bankruptcy. Specifically, LBS seeks to recover \$175,462.96 in attorney fees for work performed by Marshack Hays Wood LLP as LBS's bankruptcy counsel in OCBB's bankruptcy proceedings, (2) \$22,500 in attorney fees for work performed by Aires Law Firm as LBS's counsel in those same bankruptcy proceedings, and (3) \$30,000 in attorney fees for work performed by Aires Law Firm in this court to obtain the amended judgment adding Miller as a judgment debtor. The total sought is \$227,962.96, plus additional unspecified fees incurred in preparing, filing, and litigating this motion. LBS brings this motion pursuant to Code of Civil Procedure sections 685.040 and 685.080. Section 685.040 authorizes a judgment creditor to recover its reasonable and necessary costs in enforcing its judgment. Those costs may include attorney fees when recovery of attorney fees is otherwise provided by law or if the underlying judgment includes an award of attorney fees pursuant to Code of Civil Procedure section 1033.5, subdivision (a)(10)(A). Code of Civil Procedure section 685.080 authorizes the judgment creditor to bring a noticed motion to recover such fees and provides "[t]he motion shall be made before the judgment is satisfied in full, but not later than two years after the costs have been incurred." According to the billing statements attached to the motions, the fees LBS seeks to recover (excluding the work done on this motion) were incurred between July 18, 2019, and June 1, 2026. Based on the two-year period set forth in section 685.080 and the fact this motion was filed on July 6, 2026, Miller and OCBB argue LBS is barred from recovering all fees incurred prior to July 6, 2024—i.e., more than two years before this motion was filed—which amounts to the vast majority of the fees. LBS argues this two-year period was extended based on 11 U.S.C. section 108, subdivision (c), which provides, "if applicable nonbankruptcy law . . . fixes a period for commencing or continuing a civil action in a court other than a bankruptcy court on a claim against the debtor . . .
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	and such period has not expired before the date of the filing of the petition, then such period does not expire until the later of [¶] (1) the end of such period, including any suspension of such period occurring on or after the commencement of the case; or [¶] (2) 30 days after notice of the termination or expiration of the stay under section 362, 922, 1201, or 1301 of this title, as the case may be, with respect to such claim.” From LBS’s perspective, Code of Civil Procedure sections 685.040 and 685.080 are nonbankruptcy laws that authorize this motion and fix a period for commencing or continuing a civil action in a court other than a bankruptcy court, and the automatic stay that arose from OCBB’s bankruptcy prevented LBS from bringing this motion in this court any earlier. As such, LBS contends it had until 30 days after the stay was lifted to bring this motion and seek recovery of all fees incurred during OCBB’s bankruptcy regardless of whether they were incurred more than two years prior to the filing of this motion. Application of section 108, subdivision (c), depends on the existence of “the following five elements: (1) applicable nonbankruptcy law; (2) must fix a period; (3) to commence or continue a civil action on a claim against the debtor; (4) in a court other than a bankruptcy court; and (5) that period must not have expired when the petition is filed.” (<i>In re Gilman</i> (B.A.P. 9th Cir. 2019) 603 B.R. 437, 444 (<i>Gilman</i>), <i>aff’d sub nom. Phillips v. Gilman</i> (9th Cir. 2020) 836 F.App’x 511.) As in <i>Gilman</i>, elements four and five are fatal to LBS’s position. Although LBS has brought this current motion in a court other than a bankruptcy court, <i>Gilman</i> makes clear LBS could have brought this motion earlier in the bankruptcy court regardless of any automatic stay. As such, the automatic stay did not prevent LBS from seeking these fees earlier, and therefore element number four is not satisfied. LBS has not shown it could not have brought a motion in the bankruptcy court to recover the fees sought in this motion for work done in the bankruptcy court, as was done in <i>Gilman</i>. Moreover, regardless of whether LBS could or could not have sought these fees earlier in the bankruptcy court, section 685.080’s two-year deadline did not commence until after OCBB filed its bankruptcy petition, and therefore section 108, subdivision (c), does not apply to that two-year deadline. Indeed, as the <i>Gilman</i> court explained, “Creditors sought approval under CCP § 685.080 for
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	attorneys' fees incurred <i>postpetition</i>. By its plain language, § 108(c) extends prepetition statutes of limitation or duration at risk of expiring postpetition; it applies if 'such period has not expired before the date of the filing of the petition . . . ' 11 U.S.C. § 108(c). Because all of the fees were incurred postpetition, CCP § 685.080's two-year period did not commence prepetition and, again, § 108(c) does not apply." (<i>Gilman, supra</i>, 603 B.R. at p. 445 (italics original; fn. omitted).) LBS offers no persuasive argument as to the inapplicability of section 108, subdivision (c), based on section 685.080's two-year period being a postpetition deadline. LBS seeks to minimize or distinguish <i>Gilman</i>, but those efforts are unpersuasive. Yes, <i>Gilman</i> is not binding authority; it is merely persuasive authority. This court, however, finds it persuasive and agrees with its interpretation and application of the statutes and laws at issue here. LBS's argument <i>Gilman's</i> holding is conditioned on the creditor's election of the bankruptcy forum and cannot be squared with Code of Civil Procedure section 685.090 is not persuasive because LBS cites nothing that prevented LBS was seeking and obtaining an award of these fees in the bankruptcy court. Moreover, LBS does not offer any response to <i>Gilman's</i> ruling regarding section 685.080's two-year period being a postpetition matter not subject to section 108, subdivision (c). LBS also seeks to rely on other Ninth Circuit authority, such as <i>In re Swintek</i> (9th Cir. 2018) 906 F.3d 1100, and <i>In re Spirtos</i> (9th Cir. 2000) 221 F.3d 1079. <i>Gilman</i>, however, distinguished those authorities and found them inapplicable. (<i>Gilman, supra</i>, 603 B.R. at p. 448.) This court finds <i>Gilman's</i> rationale on these cases persuasive. Accordingly, the court concludes the two-year time period set forth in section 685.080 applies in this case and limits LBS's recovery of attorney fees to only those fees necessarily and reasonably incurred on or after July 6, 2024—i.e., two year before LBS filed this motion. Miller and OCBB contends the court should deny the motion in its entirety—not just as to the fees incurred more than two years before the motion was filed—because they belief the fee request is unreasonably inflated based on LBS including fees Miller and OCBB contend are clearly barred by section 685.080's two-year period and LBS's request for virtually every hour spent regardless of their reasonableness and necessity. The court acknowledges its
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	authority to outright deny a fee request it finds unreasonably inflated (see, e.g., <i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 635), but the court does not find LBS's request to rise to that level. Although the court concludes that vast majority of the fees sought are barred by section 685.080's two-year period, that conclusion is based on nonbinding authority from a Bankruptcy Appellate Panel because there is no California law directly on point. Simply put, neither the request for these older fees nor the inclusion of any particular fees rises to the level to justify an outright denial. That leaves the court to examine the reasonableness and necessity of the fees sought from the permissible two-year period. As with nearly all fee requests, the court must start with determining the lodestar figure—i.e., the reasonable hourly rate for each professional who performed the work multiplied by the number of hours reasonably expended. Starting with the \$175,462.96 in attorney fees for work performed by Marshack Hays Wood LLP, there are only three entries that fall within the permissible two-year period. The first is an entry of 0.20 hours by a paralegal on May 13, 2025, for reviewing a tentative ruling for post-confirmation status conference and then emailing the "MHW Team." The second is an entry of 0.20 hours by a partner for written communication with another partner and the accounting department about closing the case and the outstanding balance. The final entry is for four hours, at \$795 per hour, for a total of \$3,180, for conferring with co-counsel and preparing a declaration in support of this fee motion. The court finds none of these entries to be properly recoverable. Although four hours to confer with counsel and prepare a declaration in support of this motion may be reasonable in the abstract, the court finds it is not appropriate to award this time when the court's ruling denies all fees sought by this counsel as being outside the permissible two-year time period. Similarly, the court finds it is not appropriate to award fees for two partners corresponding about closing the file and the outstanding balance. That is an administrative matter not properly charged to the opponent. Finally, a single isolated entry by a paralegal who checked in on a tentative ruling also is an administrative matter. Based on the foregoing, all fees requested for work performed by Marshack Hays Wood LLP are denied.
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	Next, the court examines the fees sought by the Aires Law Firm. All time requested was performed by attorney Timothy Carl Aires. He seeks an hourly rate of \$750 based on his nearly 40 years of experience. Based on that experience, the nature of the work, and the market for such work here in Orange County, the court finds that hourly rate to be reasonable and appropriate. The time spent by Mr. Aires is broken into two groups—i.e., work performed in the bankruptcy court and work performed in this court to amend the judgment. As for the work in the bankruptcy court, it was performed between August 20, 2019, and December 24, 2025. As stated above, only the work performed on or after July 6, 2024, is recoverable. That leaves six entries between November 29 and December 24, 2025, totaling 13.6 hours. This time was spent on work relating to LBS’s opposition to the motion to close the bankruptcy case. Miller and OCBB contend this work is not recoverable because it is not time reasonably spent seeking to enforce the judgment. The court disagrees. This time was spent in an effort to, <i>inter alia</i>, preserve LBS’s ability to seek to add Miller to the judgment. Although the case was ultimately closed, the court nonetheless finds this work is recoverable and the amount of hours reasonable. When the \$750 hourly rate is applied to these 13.6 hours, the total is \$10,200. As for the work performed in this court to obtain an order amending the judgment to add Miller as a judgment debtor, Mr. Aires states he spent a total of 40 hours between January 14 and June 6, 2026, for a total of \$30,000 in attorney fees. The court has reviewed the time entries for this work and finds the tasks and hours to be reasonable. Miller and OCBB object to some entries, such as the work to prepare notices regarding the statement of decision and judgment in the declaratory relief action regarding alter ego. Those notices, however, were filed in this case to provide the court with notice of the ruling and judgment in the other case. The court finds those to be appropriate. Accordingly, the court awards the entire \$30,000 sought for this work. Finally, the court denies the request for fees incurred in preparing, filing, and litigating this motion. Although fees for bringing a fee motion generally are recoverable, LBS has not requested any specific amount of fees for this motion nor presented any evidence from the attorney who prepared this motion to support an award of fees in any amount. As stated above, there is a request for four hours by bankruptcy counsel, but that is separately denied for the
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		reasons already discussed. The request for fees relating to this motion is denied. Based on the foregoing, the motion is GRANTED IN PART and DENIED IN PART as stated above. LBS is awarded \$40,200 in attorney fees as against Miller given OCBB has been discharged in bankruptcy. <u>Motion No. 2: Motion to Tax/Strike Costs</u> On July 6, 2026, LBS also filed a memorandum of costs after judgment seeking the identical attorney fees sought on the foregoing motion. With reference to when the fees were incurred, the memorandum of costs instructs the reader to see the motion. In response to this memorandum of costs, Miller and OCBB filed a motion to tax or strike these costs, explaining they brought the motion in an abundance of caution to ensure the fees sought in the memorandum of costs are treated the same as the fees sought in LSB's fee motion. Miller and OCBB acknowledge LBS is entitled to recover what fees they are awarded on the fee motion, but seek to make sure LBS is not awarded any greater or duplicative fees in connection with the memorandum of costs. In its opposition, LBS asserts the memorandum of costs is merely an alternative means of seeking the same fees sought on the fee motion. Accordingly, the foregoing analysis regarding the fee motion applies equally to this motion to strike/tax, and LBS should be awarded the same fees it is awarded on the fee motion, but not any duplicative recovery. Based on the foregoing, the motion to tax/strike is GRANTED IN PART and DENIED IN PART. Pursuant to the memorandum of costs, LBS may recover the same \$40,200 in attorney fees awarded on the fee motion, but all other fees sought pursuant to the memorandum of costs are stricken for the reasons set forth above on the fee motion. Again, this is the same \$40,200 awarded on the fee motion, and LBS is not entitled to any duplicative recovery of that amount. LBS's counsel is ordered to give notice of these rulings.
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